

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

PKDC, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*

**DOCKET NO. 24-21**

Served: December 29, 2025

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**ORDER OF:** Mary Apostolakos HERVEY, *Administrative Law Judge*.

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**ORDER GRANTING JOINT MOTION TO AMEND SCHEDULE**

On December 23, 2025, the parties filed a Joint Motion for Modification of One Scheduling Deadline. (Dkt. 42.) By orders dated April 23, 2025, June 23, 2025, July 23, 2025, and November 18, 2025, the scheduling order was previously extended to allow the parties time to complete review and production of the voluminous discovery propounded in this complex proceeding. (Dkt. 27, 34, 36, 40.)

The parties now request an additional two-week extension of three deadlines, namely the parties seek to: extend the deadline to exchange expert reports from January 5, 2026, to January 19, 2026; to extend the deadline to exchange rebuttal reports from January 16, 2026, to January 26, 2026; and to extend the deadline to complete depositions of facts witnesses from January 16, 2026, to February 2, 2026, which is the current deadline to complete all discovery.

The parties state that they have substantially completed their responses to initial discovery requests, that both parties served additional discovery, that Complainant responded to the second discovery request, but that Respondent's response to the second set of interrogatories and request for production of documents served October 10, 2025, remains outstanding due largely to death of the father of Respondent's counsel in late October. Additionally, the parties states that the mother of Complainant's lead counsel died unexpectedly in early December. The parties state that these family matters occupied the time and attention of counsel and interfered with their ability to meet the current deadlines. Nonetheless, counsel state that they are committed to completing all discovery within the February 2, 2026, deadline established in the order dated November 18, 2025. The parties assert that there is good cause for this modest extension of three deadlines given the complexity of the issues, the extensive amount of electronic document collection and production that is both time consuming and technically complex, and the interruptions due to the deaths of counsels' family members as well as the holiday season.

The parties have established that additional time is necessary to complete ongoing discovery and exchange expert reports. I find that a modest two-week extension of three deadlines that provides for the completion of all discovery within the established deadline of February 2, 2026, is reasonable under the circumstances. Good cause having been stated, it is

hereby ordered that the joint motion be **GRANTED**. Accordingly, the parties are hereby **ORDERED** to follow this schedule:

|                  |                                                                                                                |
|------------------|----------------------------------------------------------------------------------------------------------------|
| January 19, 2026 | Disclosure of initial expert reports, if any                                                                   |
| January 26, 2026 | Disclosure of rebuttal expert reports, if any                                                                  |
| February 2, 2026 | Complete depositions of fact witnesses                                                                         |
| February 2, 2026 | Complete expert depositions                                                                                    |
| February 2, 2026 | Close of discovery                                                                                             |
| March 9, 2026    | Complainant's initial brief, proposed findings of fact, and appendix                                           |
| April 8, 2026    | Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix |
| April 16, 2026   | Complainant's reply and responses to proposed findings of fact                                                 |

MARY A. HERVEY -S Digitally signed by MARY A. HERVEY -S  
Date: 2025.12.29 11:54:08 -05'00'

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Mary Apostolakos Hervey  
Administrative Law Judge